IN THE HIGH COURT OF JUSTICE **Claim No: BL-2020-002063**
BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES
BUSINESS LIST (ChD)

BETWEEN:

Mr NICHOLAS STOOP
Trading as WARWICK RISK MANAGEMENT

Claimant

- and-

Ms NICOLA MAXINE JOHNSON

Defendant

SUBSTITUTED PARTICULARS OF CLAIM

Substituted by way of re-amendment [with the consent of the Defendant given] [by order of Master ..... made] on [DATE] 2022.

1. The Claimant is authorised by the Financial Conduct Authority to perform regulated claims management activities.

2. By a contract in writing dated 9 April 2018 between the Claimant and the Defendant and signed by the Defendant on 4 May 2018 ('**the Contract**'), among other things:

   a. The Claimant agreed to undertake consultancy work and claims management services ('**the Assignment**') with references to mortgages granted by Barclays Bank Plc to Mr Ziad Takieddine (via his companies) in February 2009 ('**the Mortgages**'), including the loan of £6 million to Warwick Estates Limited secured against Warwick House ('**Warwick House**'), 8 Addison Crescent, London W14 8JP ('**the London Mortgage**') and the loan of €6 million to SCI Lamartine secured against 40 Avenue Georges Mandel, Paris, 75116 ('**the Paris Mortgage**');

   b. The Claimant would be responsible for meeting the costs and expenses of any advisors instructed by the Defendant that the Claimant may consider necessary to carry out the Assignment and for co-ordinating their actions;

c. The parties agreed that the objective of the Assignment was to secure compensation in relation to and/or in respect of the Mortgages;

d. The Defendant agreed to pay the Claimant a success fee ('**the Success Fee**') of 50% of any compensation realised pursuant to the Assignment, monetary or otherwise, howsoever obtained ('**the Compensation**');

e. In the case of some or all of the Compensation taking the form of a release from one or more of the mortgage obligations, the relevant Success Fee was payable within 7 days of the realisation of the benefit of the release. For example, if the Compensation should include the full or partial release from the London Mortgage, the relevant Success Fee would be payable within 7 days of the Defendant's receipt of the net proceeds from the sale of Warwick House;

f. Once the Defendant signed the agreement, there was a period of 14 days during which she could cancel the agreement ('**the Cooling Off Period**'). Thereafter, the agreement could be terminated by either party at any stage. Termination of the agreement after the Cooling Off Period would not terminate the Success Fee arrangement.

The Claimant will refer to the Contract at trial for its full terms and effect.

3. Pursuant to the Contract, the Claimant undertook the Assignment ('**Performance**')

PARTICULARS OF PERFORMANCE BY THE CLAIMANT

(1) The Claimant created a strategy to persuade Barclays to negotiate a settlement: (a) first, by way of correspondence containing a threat of legal action that was arguable; (b) if that was not immediately successful, by involving the Defendant's Member of Parliament; and (c) and, if that did not succeed, by commencing a private prosecution or civil action;

(2) The Claimant engaged Harry Farrell to assist with the Assignment;

(3) The Claimant obtained and translated evidence that related to Barclays from the French criminal prosecution of the Defendant and her former husband, Ziad Takieddine, for tax avoidance and money laundering. This file of evidence included claims made regarding the conduct of:

(a) Anthony Valgimigli, Director and Head of Barclays Wealth London;

(b) Alfred Shukry, Head of Middle East Business at Barclays Wealth London;

(c) William Harford, Levant Desk Head at Barclays Wealth London. The file included an admission by Barclays that it had dismissed Mr Harford for involvement in money laundering by Mr Takieddine;

(d) Francesco Grosoli, CEO of Barclays Monaco and Barclays Private Bank and Board Member of Barclays Bank Suisse SA; and

(e) Gianmarco Bassetti, Barclays' Head of Credit Risk and Pierre KERBIDI, Managing Director of Barclays Plc Monaco.

(4) The Claimant liaised with lawyers and other specialists including:

a. From England, barristers: (i) Simon Farrell QC; (ii) David McIlroy; (iii) Ellis Sareen;

b. From Charles Russell Speechleys, solicitors ('**CRS**'): (i) Peter Levaggi, partner; (ii) Joe Edwards, senior associate;

c. From England, insolvency expert: Fred Satow;

d. From France, penal lawyers: (i) Joseph Breham; (ii) Guillaume Debonnet;

e. From France, human rights specialists: (i) William Bourdon, lawyer; (ii) FIDH, a French human rights organisation;

f. From France, other: (i) Fabrice Arfi, a journalist at Mediapart; (ii) Herve Barre, senior policeman in the French anti-corruption brigade;

(5) The Claimant obtained the agreement of CRS and Mr Farrell QC to enter Conditional Fee Agreements to pursue the Compensation;

(6) The Claimant procured CRS and Mr Farrell QC to carry out work to pursue the Compensation in anticipation of its Conditional Fee Agreement;

(7) The Claimant prepared a draft letter of claim for CRS to send on behalf of the Defendant to Barclays and/or Dentons, its solicitors ('**the Claimant's Draft Barclays Letter of Claim**'). That letter claimed that Barclays participated in a conspiracy with Mr Takieddine against the Defendant using unlawful means;

(8) The Claimant suggested in October 2018 that the Defendant obtain an offer to purchase Warwick House from Brian May, Esq, the owner and occupier of the house adjacent to Warwick House in order to encourage: (a) Barclays to negotiate a settlement; and/or (b) Withers LLP ('**Withers**'), the Defendant's matrimonial solicitors, to delay pursuing their claim for fees;

(9) The Claimant prepared a draft letter for the Defendant to send to her Member of Parliament ('**The Claimant's draft MP Letter**') derived from the Claimant's Draft Barclays Letter of Claim.

(10) The Claimant created a strategy to show that Banque Milleis (formerly Barclays France) knew that the Defendant was getting divorced prior to making the loans to Mr Takieddine that were subject to the Mortgages:

a. Suggested that the Defendant ask for copies of her statements from Banque Milleis with account number 4596379 01 01 ('**the French Account**'), which the Defendant opened in 2007 to fund her divorce proceedings. The Defendant sent this letter on 25 February 2019;

b. When Banque Milleis did not produce those statements, prepared a Data Subject Access Request ('**DSAR**') for the Defendant to send to Banque Milleis in respect of the French Account.

4. On 8 August 2019, the Claimant met the Defendant at Warwick House. The Defendant asked the Claimant to reduce his Success Fee. The Claimant refused.

5. On 19 November 2019, the Defendant terminated the Contract and emailed CRS to terminate any retainer that had been created.

6. On 3 June 2020, the Defendant reached a settlement in writing with Barclays Bank Plc ('**the London Settlement**') by which it agreed to release its security over Warwick House upon payment from the proceeds of sale of the sum of £6 million and its reasonable legal costs incurred since 23 March 2020.

7. In the premises, the Defendant has obtained Compensation in respect of the London Mortgage ('**the London Compensation**') calculated as the amount of interest and fees due thereon plus the reasonable legal costs incurred prior to 23 March 2020, all of which was waived by Barclays Bank Plc as part of the London Settlement.

8. The Defendant has also reached a settlement in writing in respect of the Paris Mortgage ('**the Paris Settlement**') by which she has obtained Compensation ('**the Paris Compensation**'). The court should reach this conclusion by inference from:

   a. The inherent likelihood that Barclays Bank would seek a settlement of the dispute regarding the Paris Mortgage at the same time as agreeing a settlement of the dispute regarding the London Mortgage;

   b. The inherent likelihood that the settlement would result in Compensation for the Defendant because of the substantial allegations of corruption made by the Defendant supported by evidence from French criminal investigators; and

   c. The failure (according to the Defendant, which is not admitted) of Banque Milleis to respond to the DSAR sent on 5 July 2019 rendering it vulnerable to an application to the French court to disclose potentially sensitive material involving the bank's dealings with the Defendant and Mr Takieddine.

9. In the premises, the Claimant is entitled pursuant to the Contract to payment by the Defendant of a Success Fee calculated at 50% of the London Compensation and/or the Paris Compensation.

10. The Success Fee calculated at 50% of the London Compensation was payable within seven days of the Defendant receiving the net proceeds from the sale of Warwick House.

11. The Success Fee calculated at 50% of the Paris Compensation was payable within seven days of the receipt of any cash settlement alternatively of the realisation of the benefit of any release from the Paris Mortgage alternatively within a reasonable time of the receipt of any Compensation realised pursuant to the Assignment.

12. In breach of the Contract, the Defendant has failed to pay the Claimant the Success Fee or any sum at any time.

13. If, contrary to the Claimant's primary case, the Contract on its true construction or by way of implied term required the Claimant to be an effective cause of the London Settlement and/or the Paris Settlement, the Claimant was such an effective cause by reason of his Performance of the Contract.

PARTICULARS OF EFFECTIVE CAUSE

(1) The Defendant followed the strategies created by the Claimant to obtain the Compensation. The Defendant obtained Compensation. By inference, the strategies were an effective cause of the Compensation.

(2) On 16 July 2018 CRS sent to Barclays Bank a long letter of claim that was based substantially on the Claimant's Draft Barclays Letter of Claim. By inference, Barclays understood from this letter that:

a. The Defendant had a substantial law firm that was willing to pursue Compensation;

b. There was an arguable basis on which the Defendant wished to pursue Compensation; and

c. The proceedings by the Defendant would reveal facts and matters relating to Barclays alleged involvement with tax avoidance and money laundering by Mr Takieddine.

(3) On 12 October 2018, the Defendant received an offer in writing from Mr May via his solicitors to purchase Warwick House for £12 million. On 5 December 2018, CRS conveyed this offer to Barclays via Dentons. By inference:

a. Barclays understood that the Defendant was serious about selling Warwick House and there was a real and imminent prospect of Barclays recovering some or all of the loan secured by the London Mortgage; and

b. As a consequence, Barclays was more willing to negotiate a settlement regarding the Mortgages alternatively the London Mortgage.

(4) On or about 20 March 2019 the Defendant sent to her Member of Parliament a letter ('**the Defendant's MP Letter**') based on the Claimant's Draft MP Letter prepared on 5 December 2018. On 20 June 2019, following receipt of the Defendant's MP Letter from Emma Dent-Coad, the Defendant's Member of Parliament, Barclays Bank Plc under reference SPM/115008.00003 wrote to Emma Dent-Coad MP stating that it was willing to meet the Defendant and would prefer to achieve a consensual solution.

a. By inference, the Defendant's MP Letter on its own and combined with the other particulars herein caused Barclays to be more willing to negotiate a settlement regarding the Mortgages alternatively the London Mortgage;

b. The Claimant will rely on the admission by the Defendant in paragraph 43.2 of the Defendant's Amended Defence that Barclays became more willing to negotiate with the Defendant because of the Defendant's MP Letter.

(5) On 5 July 2019, the Defendant sent a DSAR to Banque Milleis based on the draft prepared by the Claimant. Banque Milleis (according to the Defendant) did not respond to the DSAR. By inference:

a. Banque Milleis did not wish to comply with the DSAR because it would have revealed matters regarding Mr Takieddine that the bank wished to conceal; and

b. As a consequence, was more willing to negotiate a settlement with the Defendant regarding the Mortgages alternatively the Paris Mortgage.

(6) The particulars of Performance are repeated.

(7) The above steps and each of them were an effective cause of the London Settlement and/or the Paris Settlement.

14. The Claimant claims interest pursuant to section 35A of the Senior Courts Act 1981 on all sums found due at such rate and for such period as the court thinks fit.

AND THE CLAIMANT CLAIMS

(1) The Success Fee

(2) Alternatively, an inquiry into and account of the Success Fee and an order for payment thereof

(3) Alternatively, damages for breach of the Contract

(4) Interest pursuant to section 35A of the Senior Courts Act 1981 on all sums found due at such rate and for such period as the court thinks fit.

(5) Further or other order

STATEMENT OF TRUTH

The Claimant believes that the facts stated in this Substituted Particulars of Claim are true. The Claimant understands that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

I am duly authorised by the Claimant to sign this statement.

Signed.....

Print Name: Robert Kyriakides

Office or Position Held: Senior Partner

Dated: 31 March 2022

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T/A WARWICK RISK MANAGEMENT
Claimant

- and-

Ms NICOLA MAXINE JOHNSON
Defendant

SUBSTITUTED PARTICULARS OF CLAIM

Substituted by way of re-amendment with the consent of the Defendant given under CPR 17.1(2)(a) on 29 March 2022 and by the order of the Court dated 30 March 2022.

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37 Queen Anne Street,
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Ref: RK/CLT188

Solicitors to the Claimant